VOLUME 6 SURVEILLANCE

CHAPTER 9 TITLE 14 CFR PART 145 INSPECTIONS

Section 27 Surveillance of a 14 CFR Part 145 Repair Station Located in the United States Under a BASA/MIP

Source Basis:

- **Title 14 CFR Part 43, Maintenance, Preventive Maintenance, Rebuilding, and Alteration.**
- **Title 14 CFR Part 145, Repair Stations.**
- **Title 49 U.S.C. § 44701, General Requirements.**
- **Title 49 U.S.C. § 44707, Examining and Rating Air Agencies.**
- **The applicable Maintenance Implementation Procedures (MIP) between the United States and foreign country.**
- **The applicable Maintenance Agreement Guidance (MAG) between the United States and foreign country.**

6-9-27-1 REPORTING SYSTEM(S). Use Safety Assurance System (SAS) automation and the associated National/Divisional Custom Data Collection Tools (N/D C DCT).

6-9-27-3 OBJECTIVE. This section provides guidance to aviation safety inspectors (ASI) on surveillance of Title 14 of the Code of Federal Regulations (14 CFR) part 145 repair stations that also are foreign Approved Maintenance Organizations (AMO) located within the United States and its territories. The repair station must meet the applicable Maintenance Implementation Procedures (MIP) under a Bilateral Aviation Safety Agreement (BASA). The Federal Aviation Administration (FAA) and the relevant Civil Aviation Authority (CAA) of a foreign country have agreed to cooperate and provide technical assistance in evaluating and accepting each other's maintenance organization systems to ensure compliance with the respective regulatory requirements. This guidance is applicable to MIPs with the Civil Aviation Authority of Singapore (CAAS), the United Kingdom (UK) CAA, and the National Civil Aviation Agency of Brazil (ANAC).

NOTE: ASIs use this section in conjunction with the applicable Maintenance Agreement Guidance (MAG) between the United States and foreign country. However, the MAG supersedes this section if conflicts exist between the two documents.

NOTE: See Volume 6, Chapter 9, Section 24 for European Union Aviation Safety Agency (EASA) guidance. See Volume 6, Chapter 9, Section 22 for Transport Canada Civil Aviation (TCCA) guidance.

6-9-27-5 BASA LISTING. The MIP and MAG documents are searchable in the Dynamic Regulatory System (DRS). The International Program Division (AFS-50), Aircraft Maintenance Division (AFS-300), and Aircraft Certification Service, International Office (AIR-40) also list these documents on the FAA's website at https://www.faa.gov/aircraft/air_cert/international/bilateral_agreements/baa_basa_listing/.

6-9-27-7 BACKGROUND.

A. Maintenance Implementation Procedures (MIP). The FAA and the CAA base MIPs on an evaluation of 14 CFR parts 43 and 145, and the foreign country's maintenance regulations governing AMOs. The MIP evaluation determines the areas where these regulations and requirements are harmonized, equivalent, or different. Regulatory differences between 14 CFR part 145 and the foreign country's regulations, which are not equivalent, are titled "Special Conditions" in the MIP. The conclusion of a MIP provides for:

1) The mutual acceptance of FAA and CAA recommendations for certificating, renewing, or amending 14 CFR part 145 certificates, and the providing of surveillance on each other's behalf.

2) Increased efficiency by reducing or eliminating duplicate surveillance while maintaining equivalent levels of safety.

3) Building confidence in FAA and CAA internal quality control (QC)/quality assurance (QA) systems.

B. The MAG Document. The MAG is the procedural document that supports the MIP and defines the Special Conditions and activities as agreed upon by the FAA and the foreign country's CAA. The FAA and CAA must be satisfied that the certificate holder (CH) meets the conditions of the applicable MIP and MAG when conducting surveillance.

C. Special Conditions. Special Conditions are requirements in the CAA's maintenance regulations that have been found to be, based on a comparison of the 14 CFR part 145 regulations, not common to both systems and are significant enough that they must be addressed. A 14 CFR part 145 repair station that performs work on aeronautical products subject to a MIP must comply with the CAA Special Conditions and must develop a CAA supplement to its Repair Station Manual (RSM) and Quality Control Manual (QCM) to fulfill the CAA Special Conditions. The FAA surveillance must include the CAA Special Conditions as outlined in the applicable MIP.

6-9-27-9 PREREQUISITES AND COORDINATION REQUIREMENTS.

A. Prerequisites:

1) Knowledge of 14 CFR parts 43 and 145 and the applicable MIP/MAG.

2) Previous experience with certification or surveillance of 14 CFR part 145 repair stations.

3) Successful completion of FAA Course 21058, Certification and Surveillance of Part 145 Repair Stations, or equivalent.

4) Completion of FAA electronic Learning Management System (eLMS) Course 27100345, Fundamentals of Bilateral Aviation Safety Agreements for SAS Peer Group 145F and H.

5) For the UK MAG:

- Completion of FAA eLMS Course 27100335, U.S.-UK BASA-MIP for SAS Peer Groups 145F and 145H (only module 145F required).
- Completion of recurrent training or briefings every 2 years or sooner, if necessary.

6) For the Singapore MAG:

- Completion of FAA eLMS Course 27100272, U.S.-Singapore BASA-MIP for SAS Peer Groups 145F and 145H (only module 145F required).
- Completion of recurrent training or briefings every 2 years or sooner, if necessary.

7) For the Brazil MAG:

- Completion of FAA eLMS Course 27100356, Understanding the U.S.-Brazil Bilateral Aviation Safety Agreement, as necessary.
- Completion of recurrent training or briefings every 2 years or sooner, if necessary.

8) Training on future MIPs/MAGs with a foreign country, when applicable.

B. Coordination. This task requires coordination with:

- The CH.
- The CAA of a foreign country under a MIP.
- The FAA Coordinator.

6-9-27-11 REFERENCES, FORMS, AND JOB AIDS.

A. References (current editions):

- Volume 1, Chapter 3, Section 1, Responsibilities of Aviation Safety Inspectors.
- Volume 2, Chapter 11, Section 9, Safety Assurance System: Certificating/Renewing/Amending a Part 145 Repair Station Located Inside the United States Under a BASA/MIP.
- Volume 6, Chapter 9, Title 14 CFR Part 145 Inspections.
- Volume 10, Safety Assurance System Policy and Procedures.
- Volume 12, Chapter 3, Section 6, Bilateral Agreements and Implementation Procedures.
- Volume 14, Chapter 1, Section 2, Flight Standards Service Compliance Action Decision Procedure.
- The applicable MIP and MAG.
- Advisory Circular (AC) 00-58, Voluntary Disclosure Reporting Program.

B. Forms:

- The AMO's certificate and documentation defining the AMO's limitations or scope of work/approval.
- CAA audit/recommendation report/forms for CAA certification/renewal/amendment.

C. Job Aids. MAG job aids, as applicable.

6-9-27-13 FAA RESPONSIBILITIES.

A. Responsibilities of the FAA Coordinator (AFS-300). The General Aviation Group (AFS-340), Repair Station Section designates FAA Coordinators to serve as primary points of contact (POC) between the responsible Flight Standards office and the partnering CAA representatives with whom the FAA has entered into the MIP. The primary duty of the FAA Coordinator is to provide guidance and assistance to the responsible Flight Standards office with regulatory clarification of the MIP Special Conditions, certification activities with the foreign certificate, and Sampling Inspection System (SIS) coordination in the United States. The FAA Coordinator may elevate issues to the AFS-300 managers involving policy changes to the MIP and MAG if deemed necessary. For the purpose of this guidance, the FAA Coordinators (AFS-300) should be familiar with the applicable MIP and MAG.

B. Responsibilities of the ASI. Ensure the CH is in full compliance with the applicable MIP and MAG.

1) Conduct surveillance and certification activities for the CAA Special Conditions.

2) Review and accept the CAA supplement to the RSM/QCM.

3) Make recommendations for the issuance of the foreign certificate to the CAA.

NOTE: For certification activities, see Volume 2, Chapter 11, Section 9.

6-9-27-15 AUDIT OF APPROVED MAINTENANCE ORGANIZATION (AMO).

A. Reporting Changes to the CAA About the AMO's Certificate. During the AMO's certificated approval duration, the ASI must report to the CAA any changes that could affect the status of the AMO's certificate. The MAG, Section B, will detail circumstances when the AMO's certificate would require the CAA to make a change, such as name changes, locations, etc. Changes to the CH's Operating Profile in SAS may require an onsite inspection, revision to the CAA supplement, or additional surveillance of the CAA Special Conditions. Complete the applicable audit report/recommendation as required by the MAG and forward to the CAA.

1) The ASI adds the necessary Data Collection Tools (DCT) to evaluate the change or amendments and adds the applicable MIP agreement N/D C DCT "PG-F 145 Certification/Renewal/Amendment with [country] MIP Agreement" to capture the data for certification activities under the MIP.

a) Upload/attach the MAG audit report/recommendation to the N/D C DCT "Enter Common Data Fields" section.

b) Make necessary revisions to the 14 CFR part 145 certificate and operations specifications (OpSpecs) and forward the MAG audit report/recommendation to the CAA. The CAA will make the necessary changes to the AMO's certificate in accordance with the applicable MAG.

B. Audit of the AMO Facility Under a MIP. In addition to meeting 14 CFR part 145 surveillance responsibilities, the ASI must also audit the CH for compliance with the CAA Special Conditions. The CH must develop and follow the CAA supplement to the RSM/QCM to comply with the CAA Special Conditions.

1) Brief the CH on the purpose of the audit. The in-briefing may take place at the beginning of the audit or at the beginning of each day.

2) Verify compliance with the CAA Special Conditions at the main facility and at additional locations or line maintenance locations that support maintenance of foreign aircraft, engines, or components under the jurisdiction of the specific MIP.

3) The ASI must use the applicable CAA audit report/recommendation in the MAG during the AMO audit. Document any discrepancies associated with the CAA Special Conditions on the audit reports/recommendation.

NOTE: The majority of MIP agreements require AMOs to have an independent QA system consisting of an audit plan on product and procedures. The independent QA system should ensure audits are performed by personnel not responsible for the function, procedure, or products being audited. The audit plan should sample one product under each rating every 12 months to demonstrate the effectiveness of maintenance procedures. It is recommended that procedures and product audits be combined by selecting a specific product, such as an aircraft or engine or instrument, and sampling the RSM/QCM/CAA supplement procedures (calibration, training, documentation, etc.) and the requirements associated with the specific product to ensure the end result is airworthy. For example, AMOs with a capability to maintain aircraft and to repair engines, brakes, and avionics would need to complete four product audits in addition to sampling procedural audits. A quality feedback reporting system to management personnel is also required to ensure proper and timely corrective action is taken from the independent audits. Refer to the applicable MAG Section B for additional details for product and procedural audits.

4) Document the audit of the CAA Special Conditions in the SAS DCTs. The audit/recommendation document should be uploaded/attached to the N/D C DCT "Enter Common Data Fields" section.

5) Update the Vitals Information in SAS Configuration [Module 1], as required. Document the AMO's certificate number and certificate expiration date in Vitals. Update the "Foreign Certificate Issue Date" and "Last Audit Date" fields, as applicable.

6) Complete all documents in accordance with the applicable MAG and forward the documents to the CAA in accordance with the MAG procedures.

C. FAA Self-Disclosure Process. Per the MIP, the CAA recognizes the FAA self-disclosure process when a CH meets the guidance provided in AC 00-58. The Freedom of Information Act (FOIA) does not apply to the CAA documents.

6-9-27-17 TASK OUTCOMES.

A. Conduct Debriefing. Brief the CH on the audit results. Discuss all deficiencies, CH corrective actions, and FAA actions. The ASI can find instructions for conducting briefings in Volume 1, Chapter 3, Section 1.

B. Compliance and Enforcement Action. If safety issues and/or 14 CFR regulatory noncompliance are identified, follow the process contained in Volume 14, Chapter 1, Section 2 to determine the appropriate FAA compliance or enforcement action.

1) Review the AMO's corrective actions to the CAA Special Conditions and evaluate their effectiveness.

2) Notify the CAA about significant safety issues in accordance with the MAG.

NOTE: The ASI cannot process enforcement actions against the CAA Special Conditions. Communicate these findings to the CAA as outlined in the applicable MAG.

3) The ASI must report any FAA enforcement actions of the 14 CFR part 145 certificate to the CAA, as required in the applicable MAG.

C. Complete the Task. Follow Volume 10 guidance for completion of SAS Activity Recording (AR) or the DCT.

6-9-27-19 FUTURE ACTIVITIES. Follow the MAG procedures and Volume 10 to plan future risk-based surveillance in SAS.

6-9-27-21 through 6-9-27-37 RESERVED.